

PETITION - EXPUNGING A CITY ORDINANCE CONVICTION OR DIVERSION

IN THE COURT

(The convicting Kansas municipal court - see the filing instructions in this packet)

IN RE: Maria-Alejandra O'Shaughnessy-Whitfield,
PETITIONER.

Case number, if the court assigns one at filing:

.....

PETITION FOR EXPUNGEMENT OF A KANSAS MUNICIPAL COURT CONVICTION OR
DIVERSION UNDER K.S.A. 12-4516

The petitioner, Maria-Alejandra O'Shaughnessy-Whitfield, applies to this court under K.S.A. 12-4516(a); K.S.A. 12-4516(b); K.S.A. 12-4516(c); K.S.A. 12-4516(d); K.S.A. 12-4516(e); K.S.A. 12-4516(f); K.S.A. 12-4516(g); K.S.A. 12-4516(h); K.S.A. 12-4516(i); K.S.A. 12-16,134 and states:

A. THE RELIEF THIS PETITION ASKS FOR, AS THE COMMITTED RECORD STATES IT

A person convicted of a violation of a city ordinance may petition the convicting municipal court to expunge the conviction and related arrest records once three or more years have elapsed since satisfying the sentence imposed or discharge from probation, parole or a suspended sentence; a person who has fulfilled the terms of a diversion agreement based on a city ordinance violation may petition once three or more years have elapsed since those terms were fulfilled. Longer five-year and ten-year periods apply to the offences listed in (d) and to DUI-equivalent ordinance violations under (e), and a one-year period applies under (c) to a prostitution-equivalent ordinance violation where the petitioner can prove coercion. The court sets a hearing and causes notice to be given to the prosecuting attorney and the arresting law enforcement agency, and shall order expungement on three findings: no felony conviction in the past two years with no such proceeding pending or being instituted, that the petitioner's circumstances and behaviour warrant expungement, and that expungement is consistent with the public welfare. There is no firearms finding, because a municipal ordinance conviction is not a felony.

B. THE PETITIONER

Date of birth: 1968-12-31

C. THE FACTS OF THIS MATTER, WHICH THE PETITIONER SUPPLIES FROM THE RECORD

Each item below is printed in the words the committed record uses for it. Fill each one from the record itself.

[C1 - city and court] Which Kansas city's municipal court handled the case, and what is the case number?

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[C2 - full legal name] What is your full legal name?

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.....

[C3 - name used when the case was brought] What was your full name at the time of the arrest, conviction or diversion, if different from your name now?

.....
.....

[C4 - sex race date of birth] What sex, race and date of birth should the petition state?

.....
.....

[C5 - disposition type] Were you convicted of the ordinance violation, or did you complete a diversion agreement?

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.....

[C6 - ordinance violation] Which city ordinance were you convicted of violating, or diverted for?

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.....

[C7 - state equivalent offense] Would that ordinance violation also have been a violation of a Kansas statute - for example driving under the influence, driving while suspended, or no insurance? The waiting period depends on the answer.

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[C8 - offense committed date] On what date was the offence committed?

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.....

[C9 - conviction or diversion date] On what date were you convicted, or on what date did you enter the diversion agreement?

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.....

[C10 - completion date] On what date did you satisfy the sentence, get discharged from probation, parole or a suspended sentence, or fulfil the diversion terms, whichever came last?

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.....

[C11 - arresting agency] Which law enforcement agency arrested you?

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[C12 - diverting authority] Which authority granted the diversion?
(Asked only where the disposition was a diversion, because K.S.A. 12-4516(g)(1)(F) requires the petition to identify the diverting authority.)

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[C13 - felony last two years] Have you been convicted of a felony in the past two years, or is any felony proceeding pending or being instituted against you?

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.....

[C14 - costs and fines paid] Have all court costs and fines in the case been paid?
Some municipal courts require you to say so in the petition.

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[C15 - local form published] Does that municipal court publish its own expungement form or require its own process? Its clerk can tell you.

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[C16 - participant account] In your own words: what has changed in your circumstances and behaviour since the case, and why does expungement matter to you now?

.....
.....

D. THE REQUEST

The petitioner asks the court to grant the relief described in paragraph A, under K.S.A. 12-4516(a); K.S.A. 12-4516(b); K.S.A. 12-4516(c); K.S.A. 12-4516(d); K.S.A. 12-4516(e); K.S.A. 12-4516(f); K.S.A. 12-4516(g); K.S.A. 12-4516(h); K.S.A. 12-4516(i); K.S.A. 12-16,134.

DATE SIGNATURE OF PETITIONER

.....

(The petitioner signs and dates this petition personally. Nothing on this page is signed or dated for the petitioner.)

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield

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Clairsville 39501-2214

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Route: Municipal conviction or diversion expungement - K.S.A. 12-4516

PROPOSED ORDER - EXPUNGING A CITY ORDINANCE CONVICTION OR DIVERSION

IN THE COURT

(The convicting Kansas municipal court)

IN RE: Maria-Alejandra O'Shaughnessy-Whitfield,
PETITIONER.

Case number, if one was assigned:

.....

PROPOSED ORDER

This matter came before the Court on the petition of the petitioner under K.S.A. 12-4516(a); K.S.A. 12-4516(b); K.S.A. 12-4516(c); K.S.A. 12-4516(d); K.S.A. 12-4516(e); K.S.A. 12-4516(f); K.S.A. 12-4516(g); K.S.A. 12-4516(h); K.S.A. 12-4516(i); K.S.A. 12-16,134. The Court, having considered the petition and anything filed with it,

ORDERS that

(EVERY DECISION ON THIS PAGE IS THE COURT'S. This proposed order travels with the petition for the Court's convenience; nothing on it is completed, decided, signed or dated by the petitioner or by this packet.)

DATED

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(The court signs here if, and only if, it grants the petition.)

Route: Municipal conviction or diversion expungement - K.S.A. 12-4516

FILING INSTRUCTIONS - EXPUNGING A CITY ORDINANCE CONVICTION OR DIVERSION

This page is for Maria-Alejandra O'Shaughnessy-Whitfield.

WHAT THIS SET OF PAPERS IS

Petition for Expungement of a Kansas Municipal Court Conviction or Diversion under K.S.A. 12-4516.

A person convicted of a violation of a city ordinance may petition the convicting municipal court to expunge the conviction and related arrest records once three or more years have elapsed since satisfying the sentence imposed or discharge from probation, parole or a suspended sentence; a person who has fulfilled the terms of a diversion agreement based on a city ordinance violation may petition once three or more years have elapsed since those terms were fulfilled. Longer five-year and ten-year periods apply to the offences listed in (d) and to DUI-equivalent ordinance violations under (e), and a one-year period applies under (c) to a prostitution-equivalent ordinance violation where the petitioner can prove coercion. The court sets a hearing and causes notice to be given to the prosecuting attorney and the arresting law enforcement agency, and shall order expungement on three findings: no felony conviction in the past two years with no such proceeding pending or being instituted, that the petitioner's circumstances and behaviour warrant expungement, and that expungement is consistent with the public welfare. There is no firearms finding, because a municipal ordinance conviction is not a felony.

WHERE IT GOES

The convicting Kansas municipal court

Filed with the municipal court clerk. Some cities, including Wichita, govern expungement by charter ordinance and publish their own instrument; where they do, that instrument and that court's process govern.

Venue: Statewide statute available in every Kansas municipal court, executed court by court. K.S.A. 12-4516(a)(1) directs a conviction petition to the convicting court, which is the municipal court of the city whose ordinance was violated, and (a)(2) directs a diversion petition to the court. Kansas has hundreds of municipal courts and no unified municipal forms regime, so the instrument is court-specific even though the mechanism is statewide.

WHAT IT COSTS, AND WHETHER A WAIVER EXISTS

Fee as recorded: A municipal court may prescribe a fee to be charged as costs for a person petitioning for an order of expungement, K.S.A. 12-4516(g)(2). Amounts vary by court and there is no statewide figure. Fee waiver as recorded: None identified in K.S.A. 12-4516. Any relief is a matter of local municipal court practice.

WHO MUST BE SERVED

Service as recorded: The court causes notice to be given. The participant does not serve. Notice as recorded: The court sets a date for hearing and causes notice to be given to the prosecuting attorney and the arresting law enforcement agency, K.S.A. 12-4516(g)(1). Any person who may have relevant information may testify and the court may inquire into the petitioner's background.

WHAT THE RECORD SAYS YOU MUST KNOW

- The packet must tell the participant to confirm with the municipal court clerk, before filing, whether that court publishes its own form, what it charges as costs, and how many copies it wants.
- The municipal findings are three, not four. K.S.A. 12-4516(h) requires no felony conviction in the past two years with no such proceeding pending or being instituted, that the petitioner's circumstances and behaviour warrant expungement, and that expungement is consistent with the public welfare. There is no firearms-safety finding, because an ordinance conviction is not a felony conviction.
- The disclosure carve-outs apply here too. K.S.A. 12-4516(i) tracks the district court effect: the petitioner is treated as not having been arrested, convicted or diverted, subject to an enumerated list of contexts in which the arrest, conviction or diversion must still be disclosed.

WHEN TO STOP AND GET HELP INSTEAD OF FILING

- The city prosecutor opposes the petition.
- The municipal court sets a contested evidentiary hearing.
- The municipal court governs expungement by charter ordinance with terms that differ from K.S.A. 12-4516, as Wichita does.
- Whether the ordinance violation would also have constituted a listed state offence, which sets the waiting period, is disputed.
- The participant is currently required to register under the Kansas Offender Registration Act.
- Immigration consequences are in play.
- Generation is complete when the packet is produced. Self-help stops when the city prosecutor opposes, the municipal court sets a contested evidentiary hearing, or a factual ground is disputed.

THE PAGES IN THIS SET

- ks-12-4516-municipal-primary-filing-1: the composed petition, on this route's own statutory ground (Expunging a city ordinance conviction or diversion)
- ks-12-4516-municipal-proposed-order-2: the proposed order the court may sign; every decision line is the court's and is left blank (Expunging a city ordinance conviction or diversion)

Route: Municipal conviction or diversion expungement - K.S.A. 12-4516